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State Assembly advances bill to strengthen California's water conservation tools

SACRAMENTO >> Against the backdrop of impending wildfire season and 2021 being the second driest year for California on record, the California State Assembly approved legislation by Assemblymember Jesse Gabriel (D — Woodland Hills) that will incentivize installing drought-tolerant landscaping, a key tool to combat California's worsening drought and increase water conservation.

The bill, Assembly Bill (AB) 2142, motivates individuals to take advantage of water conservation rebates by re-establishing California's exemption for traditional landscaping and turf replacement rebates from gross income. The bill aligns this exemption with other permanent water efficiency and energy conservation rebates.

"With climate change exacerbating California's severe droughts, extreme heat surges, and extended wildfire seasons, investment in water efficiency is critical and necessary," said Assemblymember Gabriel. "Consumer rebates are a proven, cost-effective tool for reducing outdoor water footprint n and rewarding Californians who do their part to conserve water and adapt to our changing climate."

This measure comes at the heels of Gov. Newsom raising the possibility of statewide mandatory water restrictions and the State Water Resources Control Board voting unanimously to implement a statewide ban on watering of non-functional turf as California's drought becomes increasingly severe. California's large reservoirs are depleted, and the snowpack has shrunk to 12 percent of what it usually is this time of year. Scientists reported earlier this year that California's, as part of the greater southwest North America, current megadrought is the worst in at least 1,200 years and that the human-caused climate crisis has made it 72% worse.

At a time in which it is crucial for California to invest in and expand conservation efforts, water efficiency rebates have proven to level the playing field for households of lower socioeconomic status to reduce their water footprint—a study from the service area of the Metropolitan Water District of Southern California found that 68 percent of traditional landscaping and turf replacement rebates went to low- and medium-income households. Similarly, a report from the San Diego County Water Authority found that 55 percent of rebate recipients were low- and medium-income families.

"AB 2142 will make it that much easier for Californians to participate in lawn replacement programs sponsored by their local water agency," said Julie Hall, Senior Legislative Advocate for the Association of California Water Agencies. "In a time when we face severe drought, exempting these programs from California taxable income is an important incentive to help reduce water use."

AB 2142 now moves to the Senate, where it is expected to be heard in policy committee in the coming weeks

—Submitted

After Texas shooting: A call to 'advance our resolve'

SACRAMENTO >> Buffalo. Boulder. Aurora. Las Vegas. Orlando. San Bernardino. Sutherland Springs. Poway. Parkland. Sandy Hook.

At a press conference on Wednesday, Gov. Gavin Newsom rattled off a list of towns that have become tragic

metonyms of our nation's epidemic of gun violence. "That's just a short list," Newsom said. On Tuesday, when a gunman stormed a southwest Texas elementary school and killed 19 children and two teachers, another place joined that macabre roster: Uvalde, Texas.

The press conference at the state Capitol was the first joint appearance in at least a year by the governor and the Legislature's top Democrats, Senate President Pro Tem Toni Atkins of San Diego and Assembly Speaker Anthony Rendon of Lakewood. The stated purpose, according to Newson, was "not to add to the rhetoric but to advance our resolve."

But given that the state Legislature is already considering a raft of new gun proposals, Congress is beset by gridlock and the federal judiciary appears primed to slap down some of California's existing gun laws, there wasn't much to advance.

The news, such that it was: Newsom, Atkins and Rendon vowed to "expedite" the gun control bills currently moving through the Legislature. That includes a proposal making it easier to hold gun makers and distributors legally liable for injury and death committed with their products, a ban on the advertising of certain firearms to kids, and a bit of Texas-inspired legislation to give Californians the ability to sue anyone who manufactures, distributes or sells designated "assault weapons" or ghost guns.

California already bans so-called assault weapons, of the kind used in the Texas school massacre, and already has the nation's strictest gun laws.

Newsom said he looks forward to "enthusiastically" signing this latest crop of bills by the end of next month, months ahead of the Aug. 31 legislative deadline.

But even if they do become law, these bills would likely face legal challenges. And the judiciary has not been a friendly place for California gun laws recently. Earlier this month, a Ninth Circuit U.S. Court of Appeals panel struck down a California law barring adults under the age of 21 from purchasing a rifle, an age limit that still applies to handguns. A spokesperson from Attorney General Rob Bonta's office said they are considering whether to petition for a rehearing.

Meanwhile, the U.S. Supreme Court is expected to rule later this year on the right to carry concealed firearms. California has among the strictest concealed carry licensing schemes in the country.

State Sen. Anthony Portantino, a Democrat from Glendale, authored the invalidated age limit law. At the press conference, he spoke to my colleague, Alexei Koseff, noting that the shooters in both Buffalo, New York and Uvalde were 18-year-olds who legally acquired their AR-15 style semi-automatic rifles.

• Portantino: "The judge brought his own agenda into the conversation. That's why we have to elect a president who appoints judges that don't bring such a conservative perspective to something that kills people."

Newsom also called out the author of that opinion, Judge Ryan Nelson, an appointee of then-President Trump, by name: "Ask Judge Nelson how he's feeling…I wonder how proud he is of that opinion he wrote."

But for supporters of more restrictive gun laws in California, the courts are not the only obstacle.

In a press release Wednesday, U.S. Sen. Dianne Feinstein of California urged Congress to raise the federal age to purchase semi-automatic rifles and certain magazines from 18 to 21. But there's little indication that Congress will be passing any new gun laws anytime soon.

And while President Biden has implored Congress to act, he's not been willing to take up the plans floated by his 2020 running mate, Vice President Kamala Harris, the San Francisco Chronicle reported on Wednesday.

— Christopher, CALMatters

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